

Code of Federal Regulations

Title 24. Housing and Urban Development

Subtitle B. Regulations Relating to Housing and Urban Development

Chapter I. Office of Assistant Secretary for Equal Opportunity, Department of Housing and Urban Development (Refs & Annos)

Part 100. Discriminatory Conduct Under the Fair Housing Act (Refs & Annos)

Subpart D. Prohibition Against Discrimination Because of Handicap

24 C.F.R. § 100.204

§ 100.204 Reasonable accommodations.

Currentness

(a) It shall be unlawful for any person to refuse to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford a handicapped person equal opportunity to use and enjoy a dwelling unit, including public and common use areas.

(b) The application of this section may be illustrated by the following examples:

Example (1): A blind applicant for rental housing wants live in a dwelling unit with a seeing eye dog. The building has a no pets policy. It is a violation of § 100.204 for the owner or manager of the apartment complex to refuse to permit the applicant to live in the apartment with a seeing eye dog because, without the seeing eye dog, the blind person will not have an equal opportunity to use and enjoy a dwelling.

Example (2): Progress Gardens is a 300 unit apartment complex with 450 parking spaces which are available to tenants and guests of Progress Gardens on a first come first served basis. John applies for housing in Progress Gardens. John is mobility impaired and is unable to walk more than a short distance and therefore requests that a parking space near his unit be reserved for him so he will not have to walk very far to get to his apartment. It is a violation of § 100.204 for the owner or manager of Progress Gardens to refuse to make this accommodation. Without a reserved space, John might be unable to live in Progress Gardens at all or, when he has to park in a space far from his unit, might have great difficulty getting from his car to his apartment unit. The accommodation therefore is necessary to afford John an equal opportunity to use and enjoy a dwelling. The accommodation is reasonable because it is feasible and practical under the circumstances.

SOURCE: [54 FR 3283](#), Jan. 23, 1989; [60 FR 43327](#), Aug. 18, 1995; [61 FR 5205](#), Feb. 9, 1996, unless otherwise noted.

AUTHORITY: [42 U.S.C. 3535\(d\)](#), 3600–3620.

[Notes of Decisions \(161\)](#)

Current through December 4, 2025, 90 FR 55996. Some sections may be more current. See credits for details.

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